

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #04	CCRB Case #: 201601471	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/23/2016 7:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/23/2017	Precinct: 52		
Date/Time CV Reported Wed, 02/24/2016 9:36 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/24/2016 9:36 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Ortiz	24098	953206	052 PCT
2. SGT Angel Crespo	3472	944472	052 PCT
3. Officers			052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Stephen Tomala	13214	936023	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers damaged § 87(2)(b)'s property.	A . Officer(s) Unidentified
B . POM Richard Ortiz	Abuse: PO Richard Ortiz searched § 87(2)(b) in the Bronx.	B . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On February 24, 2016, § 87(2)(b) filed this complaint, which she did not witness, with the CCRB via telephone. Present during this interaction was § 87(2)(b)'s granddaughter, § 87(2)(b).

On February 23, 2016, at approximately 6:10 PM, Domestic Violence Prevention Officers Richard Ortiz and Stephen Tomala of the 52nd Precinct conducted a house call at § 87(2)(b) in the Bronx. Sgt. Angel Crespo, also of the 52nd Precinct later arrived. The officers had an Icard with probable cause to arrest § 87(2)(b)'s son, § 87(2)(b) § 87(2)(b).

§ 87(2)(b) alleged that the officers banged on the door continuously asking § 87(2)(b) (whom she indicated was not present in the residence) to come out and that eventually she heard drilling equipment at the front door resulting in four holes drilled around the lock of the door. § 87(2)(b) later observed additional damage to the door including a bent lock, scratches, and chips to the paint (**Allegation A**). After approximately ten minutes, PO Ortiz walked out to the front of the building and allegedly opened § 87(2)(b)'s window from the outside, pulling a curtain out of the way in order to see inside (**Allegation B**). No arrests were made as a result of this incident and all the officers left the scene without further issue.

Video Footage

No footage was obtained from this incident. Building management confirmed security cameras at the location have not been serviced in a year. § 87(2)(b) initially claimed to have recorded the incident with her cell phone, but later stated she deleted all the footage. None of the officers involved were assigned Body Worn Cameras.

Mediation, Civil and Criminal Histories

- This complaint was ineligible for mediation due to property damage allegations.
- No notice of claim has been filed with regards to this incident as of May 19, 2016 according to the NYC Comptroller's office.

• § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b) and § 87(2)(b)'s first CCRB complaint.
- PO Richard Ortiz has been a member of service for three years. He has no prior substantiated CCRB allegations. He has one previous CCRB case which was closed as Victim uncooperative. § 87(2)(g)
- Sgt. Angel Crespo has been a member of service for eight years. Sgt. Crespo has no prior substantiated CCRB allegations. He has five prior CCRB cases including ten allegations and one concurrent case with three allegations. § 87(2)(g)

Potential Issues

- The investigation was unable to obtain the photos of the damage to the door. § 87(2)(b) presented these on her phone during her interview statement however she did not send the photos and attempts to retrieve them by the field team were unsuccessful, since she has deleted them.
- § 87(2)(b) § 87(2)(g) indicated she called him and placed him on speakerphone while she interacted with the officers. § 87(2)(g) .
- § 87(2)(b) identified the neighbors at § 87(2)(b) as witnessing the incident. The field team spoke to one of the tenants, § 87(2)(b) and he denied witnessing the incident. A Spanish please call letter was left for the other tenants to contact the CCRB and none have.

Findings and Recommendations

Allegation not pleaded

§ 87(2)(g)

Subject Officer Identification

During a span of approximately 45 minutes, § 87(2)(b) alleged that the officers continuously banged on the door. She could not identify which of the officers banged on the door nor could she attribute who allegedly drilled a hole in her door. None of the officers acknowledged causing any damage to the door. § 87(2)(g)

§ 87(2)(b) attributed the opening of the window and movement of the blinds to the same officer who primarily interacted with her. While all the officers denied opening the window, all officer accounts place PO Ortiz as the primary contact officer during this incident. Additionally, his general pedigree matched § 87(2)(b) description of him. § 87(2)(g)

Allegation A –Abuse of Authority: Officers damaged § 87(2)(b) s property.

It is undisputed that PO Ortiz and PO Tomala conducted a home visit at § 87(2)(b) on February 23, 2016. Upon arriving, they knocked on the front door. Sgt. Crespo was called, and after more knocks and requests to the occupants to open the door, the officers left the location. § 87(2)(b) s door plate and cylinder for her lock were replaced by the building management the next day.

§ 87(2)(b) was interviewed at the CCRB on March 3, 2016 (See Board Review, Civilian Statements). § 87(2)(b) heard four loud knocks and her boyfriend, § 87(2)(b) went to the door. § 87(2)(b) heard more banging and a voice at the door saying “Open up the door big guy, you don’t want to make things worse than they are now.” § 87(2)(b) responded “We’re not opening the door.” After approximately thirty minutes, § 87(2)(b) heard what sounded like drilling equipment at her door. Upon the officers’ departure, § 87(2)(b) observed four holes, each approximately the size of a quarter, around the door lock. At no time did the officers open the door and when they left the scene, she did not observe them carrying any drilling equipment. The door plate lock was bent, which § 87(2)(b) attributed to the officers knocking on the door hard. § 87(2)(b) presented

photos of the damage to the door during her CCRB interview but did not forward them to the investigator and deleted them thereafter.

§ 87(2)(b) was interviewed at the CCRB on March 3, 2016 (See Board Review, Civilian Statements). § 87(2)(g) He stated he was not present for the incident, but rather that at the time of the incident, he was at his brother's house and received a call from § 87(2)(b). She placed him on speaker and he heard officers banging on the door. He heard an officer saying "come out big guy" and something to the effect of "We have a warrant for your arrest." § 87(2)(b) stated he was only on the phone with § 87(2)(b) for approximately one minute.

§ 87(2)(b) at § 87(2)(b) indicated there was no receipt for the work order but that he had received a call between 8 p.m. and 9 p.m. the same day of the incident regarding damage to the door. The next day he went and replaced the plate which was bent and the lock cylinder. He observed no drilled holes in the door.

PO Ortiz was interviewed at the CCRB on May 5, 2016, PO Tomala was interviewed on May 9, 2016 and Sgt. Crespo was interviewed on May 13, 2016 (See Board Review, MOS Statements). PO Ortiz and PO Tomala went to § 87(2)(b) for a home visit. § 87(2)(b) § 87(2)(b) had an Icard with probable cause to arrest § 87(2)(b).

They went to the location in order to either speak to § 87(2)(b) or his son, § 87(2)(b). PO Ortiz observed damage to the door, including a hole covered in plastic above the doorknob when they initially approached the apartment. PO Ortiz and PO Tomala knocked and identified themselves. They eventually requested Sgt. Crespo to the scene. Upon his arrival, Sgt. Crespo also knocked on the door. All the officers interviewed denied causing any damage to the door and none of the officers carried any drills or obtained a drill during the incident.

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegation A** be closed as "Officer(s) Unidentified."

Allegation B- Abuse of Authority: PO Richard Ortiz searched § 87(2)(b) in the Bronx.

§ 87(2)(b) alleged that ten minutes after their arrival, PO Ortiz went out to the front of the apartment, and from the sidewalk jumped up in order to reach the top of the window pane (approximately 8 feet off the ground) which was unlocked and pulled it down enough to access the window curtains, which he pulled to the side in order to look inside. § 87(2)(b) indicated that § 87(2)(b) closed the window, which PO Ortiz re-opened asking § 87(2)(b) to come out and that eventually, § 87(2)(b) locked the window.

As discussed previously, § 87(2)(b) was not in the apartment, as asserted by § 87(2)(b). Yet, the officers indicated that upon their arrival, they heard movement inside the apartment, and that a

male voice told them they did not have a warrant. PO Tomala called § 87(2)(b) § 87(2)(b) and spoke to his mother, who related that she had just spoken with § 87(2)(b) § 87(2)(b) and he was inside the apartment. PO Tomala then heard her call § 87(2)(b) and could hear them arguing while he stood outside the door of the residence. All three officers indicated that they took turns securing the front door and the outside window to ensure that § 87(2)(b) did not flee. All the officers denied that the window pane was pulled down or that the blinds were moved in order to see into the apartment. They noted that they had sufficient knowledge that § 87(2)(b) was inside but they took no further actions to go into the apartment to arrest him since they solely had an Icard. § 87(2)(b) turned himself in a couple of days later at the stationhouse.

§ 87(2)(g)

As such, it is recommended that **Allegation B** be **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Squad: 4

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date